

The right not to have to choose between more privacy and more health

Intervention by Guido Scorza, member of the Guarantor for the protection of personal data
(Il Sole 24 Ore, February 5, 2024)

It is often said that the right to privacy is a sworn enemy of the right to health and that much more medical-scientific research could be conducted and patients could be treated much more effectively if only the right to privacy did not so often get in the way. This is a theme that was at the center of attention during a recent conference on digital health, data, and artificial intelligence titled "Digital Health by Design" at the Ministry of Health, where I had the pleasure of participating.

Well, this is a misleading narrative that produces the only result of exacerbating an antagonism and a confrontation between rights that has no reason to exist and that should not exist. The task, the duty, the ultimate goal of any Government's action is or, at least, should be, to never put a person in the position of having to choose between rights, especially if the rights in question are fundamental, especially if they are of equal standing, especially if they are as precious as, for example, the right to health and the right to privacy.

One should never ask someone to choose whether they want more privacy or more health. But, of course, the same applies to every other right: privacy and security, privacy and business, privacy and transparency. People have the right not to have to choose between fundamental rights and to benefit from all of them without renouncing any.

And, in fact, there is really no reason why it should not be so. But certainly, there is no reason to claim – unless, of course, there is a lack of knowledge of the playing field or bad faith – that the right to privacy is an enemy, rival, or antagonist of the right to health and that "because of" privacy, personal data cannot circulate as much as would be necessary for ensuring a better functioning of the healthcare system and that of medical-scientific research.

It cannot be so, and it must not be so for a number of reasons. The first is that our Constitutional Court has taught us, repeatedly, that there are no rights that are tyrannical, that is, rights that can devour and overwhelm other rights. Therefore, the right to privacy could never stand as an obstacle to the right to health. And, of course, vice versa.

The Charter of Fundamental Rights of the European Union, on the other hand, clearly states that no right – not even among those fundamental – is absolute and that, on the contrary, every right can always be limited – not canceled, not ignored, not forgotten – to the minimum extent necessary to ensure the exercise of another equally ranked right.

The rule, in short, is that of balancing and not that of antagonism between rights. It is by balancing between rights that are only seemingly rival that the most sacred of all rights is guaranteed: that of people – even before that of citizens – not to have to choose.

And, on the other hand, the very title of the European privacy regulation suggests a conclusion of this kind since, contrary to what is often said – largely due to the acronym GDPR – it is not simply "General Regulation on the Protection of Personal Data," but continues, adding, "...and on their free circulation."

Here, words are more important than elsewhere because they allow for a correct interpretation of the objective of the European regulation: not to limit the circulation of personal data but, on the contrary, to maximize it precisely through a set of uniform rules.

No antagonism, therefore, between the right to privacy and the need for personal data to circulate freely, among other things, to ensure the right to health of individuals. And we had, on the other hand, a vivid representation of this during the dramatic days of the pandemic since, precisely thanks to the rules of the GDPR, Europe was able to implement, more quickly than elsewhere, the Green Pass, essentially a health passport, capable of circulating some of the most sensitive personal data, always and particularly during that period.

It is difficult to imagine a similar outcome if Europe had not had a framework of uniform rules regarding the protection of personal data. Not to mention that the European legislator has dug into the regulation

of personal data protection, creating important pathways and designing wide preferential lanes precisely to ensure that health and the research instrumental to guarantee it did not remain prisoners of the rules.

But then, what to do to put into practice the art of balancing and no longer hear that there is someone who is unwell or could be better but cannot be treated because of privacy? The first rule is interdisciplinary dialogue, which is too often lacking. The second is knowledge of the rules of the game that could avert the risk of misunderstandings and misinterpretations. The third involves the awareness that caring for a person's health does not only mean looking at their physical conditions but also at their dignity, and the right to privacy is an instrumental right concerning the dignity of individuals.

There is, in short, room to "lay down arms" and seek, necessarily on a case-by-case basis, paths and solutions capable of guaranteeing individuals the right not to have to choose between the right to health and the right to privacy.